



ELDERS INDULGE IN A FREE FOR ALL AS THE RAJYA SABHA IS STALLED OVER THE WOMEN'S RESERVATION BILL

are state-owned and not desperate for such protection. Eminent jurist Soli Sorabjee says Supreme Court judgments have clearly laid down that in case of accidents occurring in plants run by enterprises which are engaged in hazardous activity owe an absolute and non-delegable duty to ensure that no harm results to anyone.

The Women's Reservation Bill, ensuring 33 per cent reservation to women in Parliament and state legislative bodies, was passed in the Rajya Sabha amid high drama that saw the suspension of seven members. Though the Government couldn't live up to Sonia's demand on

passing the Bill on Women's Day, the game plan that brought in the Left and BJP on its side was seen as the Government's victory. Now the ladies' after-party in the Lok Sabha has crashed, with the Government backpedalling on its introduction in Lok Sabha, thanks to the hefty political consequences of the Bill. Soon after the ruckus in the Rajya Sabha over the Bill, Sonia walked up to RJD chief Lalu Prasad Yadav and told him, "You have seven daughters and within your family there are seven who support the Bill." For Lalu and Samajwadi Party chief Mulayam Singh Yadav, the Bill is more than friendly quips. In Bihar, the Congress is putting together all its forces to win as many seats in the assembly elections scheduled for the

THE HAUGHTINESS AFTER THE ELECTION VICTORY IS GIVING WAY TO ANXIETY, BEST EXEMPLIFIED IN THE WAY THE GOVERNMENT TRIED TO BRING IN THE NUCLEAR LIABILITY BILL.

the Government had nothing much to say. But the Bill, still pending, became a matter of intense debate. In simple terms, it calculates the cost of dying—a liability regime that will pay compensation to the victims in case of an accident at a nuclear plant. The Government wants to cap the liability of the operators in such an event to a maximum of Rs 500 crore and the national liability fixed at Rs 2,135 crore.

The Bill renders the builder of a foreign reactor, even if it is culpable in a nuclear accident, wholly immune from any victim-initiated civil suit or criminal proceedings in an Indian court or in a court in its home country. It turns the legal liability of a foreign reactor supplier for an accident into mere financial compensation paid through the Indian state operator of the plant. Opponents of the Bill argue that the legislation is planned to help the private US companies as rest of the players in the Indian nuclear energy sector from France and Russia



year-end. The party anchored its political fortunes on the ability to attract upper-caste votes from the BJP-JD(U) combine and woo Muslims away from the RJD and JD(U).

With a demand for a quota within the quota, various Muslim organisations, led by the Jamiat Ulama-i-Hind, are teaming up with the Yadav triumvirate—Mulayam, Lalu and Sharad Yadav—and giving jitters to the Congress. The Bill has also drawn flak from Congress ally Mamata Banerjee who abstained from voting in the Rajya Sabha. Her pitch for the sub-quota is being seen as an answer to the 10 per cent job quota announced in West Bengal for backward-class Muslims.

Another important legislation that the Government has in its kitty is to allow the easy entry of foreign universities. Indian students spend an estimated \$13 billion on foreign education annually and the Bill is part of the Government's plans to expand op-

YASHBANT NEGI/www.indiatodayimages.com